

SENATE No. 2685

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 13, 2025.

The committee on Environment and Natural Resources to whom was referred the petition (accompanied by bill, Senate, No. 621) of Jason M. Lewis for legislation to reduce solid waste, increase recycling and generate municipal cost savings, report the accompanying bill (Senate, No. 2685).

For the committee,
Rebecca L. Rausch

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An Act to reduce solid waste, increase recycling and generate municipal cost savings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 16 of the General Laws is hereby amended by adding after section
2 21 the following new section:-

3 Section 21A. (a) In conjunction with the statewide solid waste master plan, the
4 department shall establish annual performance target goals for municipal solid waste reduction,
5 based on total pounds of solid waste disposed per resident served per year. The department, in
6 consultation with the solid waste advisory committee, shall consider the costs and benefits to a
7 municipality in the setting of such goals.

8 (b) Each municipality shall make a written report to the department, no later than first day
9 of September of each year, of the total weight of solid waste disposed during the prior fiscal
10 year, as well as the approximate number of households and residents served by that
11 municipality's solid waste disposal program. Such report shall be made in a form and with the
12 information, as prescribed by the department.

SECTION 2. The department of environmental protection shall collect a \$1.50 per ton surcharge on all waste disposed of at a solid waste disposal facility from the solid waste disposal facility operators. All surcharge monies shall also become part of the Zero Waste Fund and used to fund municipal and other recycling programs, composting programs, composting and recycling education programs and any and all other programs promoting zero waste principles.

SECTION 3. All entities that provide solid waste collection services in the commonwealth shall be subject to regulation by the department of environmental protection. In order to operate in the commonwealth, haulers shall register with the department, subject to an administrative fee as set by the department.

SECTION 4. Monies from the Zero Waste Fund may be used to provide low interest loans to haulers for equipment with which to implement the provisions of the regulations promulgated as a result of this act. The commissioner shall cause to be filed with the chairs of the joint committee on environment and natural resources, the chairs of the House and Senate committees on ways and means and the House and Senate clerks an annual report regarding the revenues, expenditures and loans provided to and from the fund.

SECTION 5. The department of environmental protection may promulgate rules and regulations to ensure the implementation of this act.